

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
CRISTIAN LOPEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, and NYPD POLICE OFFICERS
JOHN and JANE DOES NUMBERS ONE THROUGH TEN,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

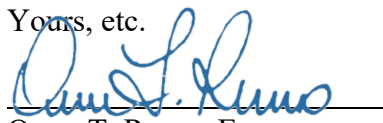
Plaintiff designates New York
County as the place of trial.

To the above-named defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 1, 2023

Yours, etc.



Omar T. Russo, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

CRISTIAN LOPEZ,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, and NYPD POLICE
OFFICERS JOHN and JANE DOES NUMBERS ONE
THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff, CRISTIAN LOPEZ, by his attorneys, Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violations of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and laws of the State of New York. On April 20, 2023, at approximately 7:00 p.m., Plaintiff, while lawfully at or around 247 East 116th Street, County and State of New York, was subject to an unlawful detention and arrest by the defendant police officers. Further, Plaintiff was subjected to excessive force as well as delay of necessary medical attention while he was handcuffed for approximately one (1) hour despite his brutal and obvious physical injuries. Plaintiff was released from custody with no charges after defendant officers realized they had entered the wrong apartment, and as Plaintiff committed no crime. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and his constitutional, common law, and statutory rights when the individual defendants unlawfully stopped and detained Plaintiff, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff, Cristian Lopez, is a resident of the state of New York.

3. NYPD Police Officers John and Jane Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

4. Police Officers John and Jane Does Numbers One Through Ten are being sued in their individual and official capacities.

5. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

6. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

7. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

8. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on October 3, 2023.

9. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

10. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

11. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

12. On April 20, 2023, at approximately 7:00 p.m., Plaintiff was lawfully present inside his room within 247 East 116th Street, County and State of New York, when the defendant officers unlawfully descended upon, stopped, detained, searched, and arrested Plaintiff without probable cause or legal justification.

13. At the aforementioned place and time, Plaintiff was with his cousin watching television in his room when approximately eight (8) defendant officers forced their way into the apartment, breaking both the main door and Plaintiff's apartment door.

14. The officers were in plain clothes and did not announce themselves as police officers.

15. Upon seeing the strangers in his apartment with guns pointed at them, and unaware that these were police officers, Plaintiff and his cousin panicked, the cousin exclaiming that they were being robbed.

16. Plaintiff and his cousin, in an attempt to avoid being robbed, jumped out of his second story window, severely injuring himself in the process.

17. When, after Plaintiff's fall, the officers finally identified themselves, Plaintiff's cousin, not the officers, assisted the clearly wounded Plaintiff off the ground and back inside his apartment.

18. In the apartment, the defendant officers threw Plaintiff to the ground, despite his visibly bleeding face and mouth.

19. It was at this point that defendant officers began to arrest Plaintiff, restraining him with unreasonably tight metal handcuffs causing pain, and subjecting him to an unlawful pat-down search.

20. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective basis to accuse Plaintiff of committing a crime or violating the law in any way.

21. At no point did defendant officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

22. Plaintiff did not resist arrest.

23. Nevertheless, Plaintiff was unlawfully arrested, handcuffed, and subjected to unlawful pat-down search by the defendant officers without legal justification or probable cause.

24. Plaintiff's primary language is Spanish; he understands and speaks little-to-no English.

25. As he lay handcuffed and confused, Plaintiff pleaded with the defendant officers for immediate medical attention as best he could.

26. Plaintiff was dripping blood from his mouth, missing teeth, and in excruciating pain.

27. At some point thereafter, the defendant officers realized that they had forcibly entered the wrong apartment, and Plaintiff and his cousin were released from their custody without charges.

28. Eventually, an officer with some Spanish-speaking ability explained to Plaintiff that they had entered the wrong apartment and apologized for the issues they had created.

29. Plaintiff thereafter sought emergent medical care at the emergency room of Metropolitan Hospital, where he received treatment for his mouth, face, and left knee.

30. Plaintiff had lost several teeth in the fall and had to have his jaw wired shut for approximately one (1) month.

31. As a result of this incident, Plaintiff sustained serious injuries to his face, mouth, and left knee. He lost several teeth and could not eat solid foods for at least a month after this incident, and still must wear braces.

32. Plaintiff will continue to undergo treatment for his injuries, which will include extensive dental and orthodontic work and surgeries.

33. Further, Plaintiff was terminated from his employment at a restaurant as a result of this incident and still struggles to find gainful employment.

34. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiff.

35. The unlawful arrest, confinement, use of excessive force by the individually named defendants, and denial of right to adequate medical care, caused Plaintiff to sustain severe physical, mental, and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

36. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

37. Defendants owed a duty of care to Plaintiff.

38. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers were unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by, among other things, bursting

into his apartment unidentified with weapons pointed at him, failing to render him first aid, throwing him to the ground, and handcuffing him as he bled out from the mouth.

39. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

40. All of the foregoing occurred without any fault or provocation by Plaintiff.

41. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

42. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

43. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SECOND CAUSE OF ACTION **Unlawful Stop, Question, and Search**

44. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

45. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

46. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

47. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

48. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

49. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION **Violation of Fourth and Fourteenth Amendment Rights:** **Unlawful Seizure and Deprivation of Liberty**

50. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

51. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

52. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION
False Arrest/False Imprisonment

53. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

54. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

55. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION
Violation of Plaintiff's Fourth and Fourteenth Amendment Rights:
Excessive Force

59. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

60. The use of excessive force by defendants by, amongst other things, seizing him and tightly handcuffing him while he was already seriously and visibly injured, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

62. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

63. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff.

64. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

65. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

68. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

69. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

70. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

71. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

72. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

73. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

74. Defendants failed to intervene to prevent the unlawful conduct described herein.

75. As a result of the foregoing, Plaintiff suffered permanent injury, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

76. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs

80. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

81. Defendants, despite being aware that Plaintiff was suffering from pre-existing wounds and injuries and required additional treatment from medical professionals, delayed Plaintiff's medical treatment and refused to administer and properly procure immediate and adequate medical attention.

82. The delay in medical treatment to Plaintiff's injuries resulted in extreme and excruciating pain, suffering, and an exacerbation to the injuries that were suffered by Plaintiff that would have been prevented if Plaintiff received treatment in a timely manner.

83. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

85. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

86. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Assault

97. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

98. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

99. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

102. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION**Battery**

103. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

104. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner roughly threw Plaintiff to the ground and handcuffed him tightly behind his back, brutally effecting an arrest without his consent and with the intention of causing harmful and/offensive bodily contact to the Plaintiff and caused such battery.

105. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

107. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

108. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION**Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

87. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

88. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

89. The acts of the defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

90. The defendant officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for over an hour in total.

91. By reason of the acts and omissions by defendants described above, Plaintiff has endured mental and emotional injuries and was otherwise damaged and injured.

THIRTEENTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

92. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

93. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

94. Defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

95. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

96. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

97. By reason of the acts and omissions by defendants described above, Plaintiff has endured mental and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

126. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

127. Defendant officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

128. The City of New York, as the employer of the covered individual defendant officers, is liable to the Plaintiff for the wrongdoing of the covered individual defendant officers.

129. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

130. The acts of defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

131. The defendant officers, while in uniform, unlawfully seized, frisked, and searched Plaintiff, before detaining and further causing his detention for over an hour in total.

132. By reason of the acts and omissions of defendants described above, Plaintiff has endured mental and emotional injuries and was otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

133. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

134. Defendant officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

135. The City of New York, as the employer of the covered individual defendant officers, is liable to Plaintiff for the wrongdoing of the covered individual defendant officers.

136. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

137. The defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

138. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

139. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

140. By reason of the acts and omissions of defendants described above, Plaintiff has endured mental and emotional injuries and was otherwise damaged and injured.

SIXTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

98. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

99. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

100. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered mental, economic, and emotional injuries, as well as a deprivation of liberty.

101. As a result of the above tortious conduct, Plaintiff was caused to suffer mental, economic, and emotional injuries, as well as a deprivation of liberty.

102. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the individual defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

141. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

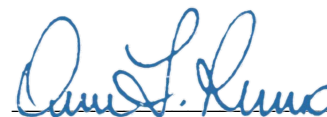
WHEREFORE, Plaintiff, CRISTIAN LOPEZ, demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable

attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*

Dated: New York, New York
November 1, 2023

Shulman & Hill, PLLC

By:

A handwritten signature in blue ink, appearing to read "Omar T. Russo", is written over a horizontal line.

Omar T. Russo, Esq.

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New York 10007

ATTORNEY'S VERIFICATION

OMAR RUSSO, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
November 1, 2023



OMAR T. RUSSO, ESQ.